



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 23 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8035
(EIGHTH REVISION)

EXPIRATION DATE: January 31, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Baker Atlas
(formerly Western Atlas International, Inc.)
Houston, TX
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of limited quantities of certain propellant explosives, Division 1.3 to be transported as Cartridges, Power Device, Division 1.4 when contained in specially designed packagings. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.56(b) and 175.3.
5. BASIS: This exemption is based on application of Baker Hughes dated January 26, 1999, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Cartridges, power device	Division 1.4S	UN0323	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a plastic tube containing two of the units described below. Both ends of the tube must be closed with plastic plugs and both power device cartridges must be cushioned at each end with absorbent cotton. The filled plastic tubes must be snugly packed in a 4G fiberboard box, gross weight not to exceed 65 pounds. When the net weight of the explosive material is 10 pounds or more, the outer packaging must be a 4C1, 4D, or 4F wooden box.

b. The power device authorized under this exemption must be composed of a propellant identified as Thiokol, Inc., TPJ 3005, Thiokol, Inc., TPJ 3000 or Horex, Inc., Hi Tex 300 or any other propellant specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to the first shipment. Each unit must be cylindrical with a maximum diameter of 3/4 inches and a maximum length of 4-1/8 inch. The maximum allowable weight is 800 grains (52 grams). Each cartridge may have an ignition element at one end. The weight of this ignition element may not exceed 0.06% of the weight of the cartridge.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

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b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - As required in 49 CFR Part 172, Subpart D.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo only aircraft.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Registration required by § 107.601 et seq., when applicable.

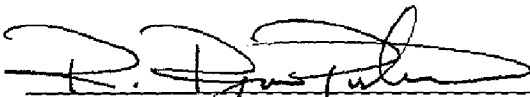
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



For Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

2/23/99
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

Dist: FHWA, FRA, USCG, FAA
PO: sdc